

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Colin Gardner	Team: Squad #11	CCRB Case #: 201510421	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 11/12/2015 12:00 AM, Wednesday, 12/09/2015 10:30 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 6/9/2017	Precinct: 120		
Date/Time CV Reported Wed, 12/09/2015 11:41 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Wed, 12/09/2015 11:41 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Danielle Orouke	07054	923506	QNROBSQ
2. DT3 John Zamot	07155	926337	WARRSEC
3. SDS Frank Ventura	05237	900703	WARRSEC
4. DT3 James Donovan	4969	933754	WARRSEC
5. DT3 Thomas Dunne	3483	936530	WARRSEC
6. DT3 Michael Riso	06586	931925	WARRSEC

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT2 Thomas Kaup	04351	919229	QNROBSQ
2. DT3 Martin Wicklow	06219	942702	QNROBSQ

Officer(s)	Allegation	Investigator Recommendation
A . DT3 John Zamot	Abuse: On November 12, 2015, Det. John Zamot entered and searched § 87(2)(b) in Staten Island.	A . Unsubstantiated
B . DT3 John Zamot	Abuse: On November 12, 2015, Det. John Zamot drew his gun.	B . Exonerated
C . SDS Frank Ventura	Abuse: On November 12, 2015, Sgt. Frank Ventura entered and searched § 87(2)(b) in Staten Island.	C . Unsubstantiated
D . SDS Frank Ventura	Abuse: On November 12, 2015, Sgt. Frank Ventura drew his gun.	D . Exonerated
E . DT3 Thomas Dunne	Abuse: On November 12, 2015, Det. Thomas Dunne entered and searched § 87(2)(b) in Staten Island.	E . Unsubstantiated
F . DT3 Thomas Dunne	Abuse: On November 12, 2015, Det. Thomas Dunne drew his gun.	F . Exonerated
G . DT3 James Donovan	Abuse: On November 12, 2015, Det. James Donovan entered and searched § 87(2)(b) in Staten Island.	G . Unsubstantiated
H . DT3 James Donovan	Abuse: On November 12, 2015, Det. James Donovan drew his gun.	H . Exonerated
I . DT3 Michael Riso	Abuse: On November 12, 2015, Det. Michael Riso entered and searched § 87(2)(b)	I . Unsubstantiated
J . DT3 Michael Riso	Abuse: On November 12, 2015, Det. Michael Riso drew his gun.	J . Exonerated

Officer(s)	Allegation	Investigator Recommendation
K . DT3 Danielle O'Rourke	Discourtesy: On December 9, 2015, Det. Danielle O'Rourke spoke discourteously to § 87(2)(b)	K . Substantiated
L . DT3 Danielle O'Rourke	Abuse: On December 9, 2015, Det. Danielle O'Rourke threatened to damage § 87(2)(b)'s property.	L . Substantiated

Case Summary

On November 12, 2015, at approximately 5:05 a.m., Det. John Zamot, Sgt. Frank Ventura, Det. Thomas Dunne, Det. James Donovan, and Det. Michael Riso, from the Queens Warrant Squad entered and searched § 87(2)(b)'s apartment with their guns drawn (**Allegations A, B, C, D, E, F, G, H, I, & J**). On December 9, 2015, at approximately 9:50 p.m., Det. Danielle O'Rourke, Det. Thomas Kaup, and Det. Martin Wicklow from the Queens Robbery Squad arrived at § 87(2)(b)'s apartment and Det. O'Rourke said, "I want to talk to you, just open the fucking door," through the closed apartment door (**Allegation K**). When § 87(2)(b) refused to open her door, Det. O'Rourke said, "We can do this the nice way or we can do this hard way" (**Allegation L**). § 87(2)(b) was not arrested or issued a summons for either incident.

There is no video footage for either incident.

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED].
- § 87(2)(b) did not file a Notice of Claim regarding this incident (**see Board Review 24**).

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) § 87(2)(b)
[REDACTED]
- Sgt. Frank Ventura has been a member of the service for 24 years and there are no substantiated CCRB allegations against him.
- Det. John Zamot has been a member of the service for 16 years and there are three substantiated CCRB allegations against him. In case # 200813160, the following abuse of authority allegations were substantiated against Det. Zamot: a stop, search of a person, and search of a vehicle. The Board recommended command discipline, but the NYPD issued instructions.
- Det. Thomas Dunne has been a member of the service for 11 years and there are no CCRB substantiated allegations against him.
- Det. Michael Riso has been a member of the service for 13 years and there is one CCRB substantiated allegation against him. In case # 201409443, an abuse of authority allegation for a home entry was substantiated against Det. Riso. The Board recommended charges and the case is currently with APU.
- Det. James Donovan has been a member of the service for 12 years and there is one CCRB substantiated allegation against him. In case # 200613740, a frisk allegation was substantiated against Det. Donovan. The Board recommended command discipline, but the NYPD took no disciplinary action.
- Det. Danielle O'Rourke has been a member of the service for 16 years and this is the first complaint filed against her.

Findings and Recommendations

Allegations Not Pleaded

§ 87(2)(g)

Allegation A – Abuse of Authority: On November 12, 2015, Det. John Zamot entered and searched § 87(2)(b) in Staten Island.

Allegation B – Abuse of Authority: On November 12, 2015, Det. John Zamot drew his gun.

Allegation C – Abuse of Authority: On November 12, 2015, Sgt. Frank Ventura entered and searched § 87(2)(b) in Staten Island.

Allegation D – Abuse of Authority: On November 12, 2015, Sgt. Frank Ventura drew his gun.

Allegation E – Abuse of Authority: On November 12, 2015, Det. Thomas Dunne entered and searched § 87(2)(b) in Staten Island.

Allegation F – Abuse of Authority: On November 12, 2015, Det. Thomas Dunne drew his gun.

Allegation G – Abuse of Authority: On November 12, 2015, Det. James Donovan entered and searched § 87(2)(b) in Staten Island.

Allegation H – Abuse of Authority: On November 12, 2015, Det. James Donovan drew his gun.

Allegation I – Abuse of Authority: On November 12, 2015, Det. Michael Riso entered and searched § 87(2)(b) in Staten Island.

Allegation J – Abuse of Authority: On November 12, 2015, Det. Michael Riso drew his gun.

The following facts are undisputed: § 87(2)(b)'s address was listed as § 87(2)(b)'s address on three active warrants (**see Board Review 18**). § 87(2)(b) receives mail at § 87(2)(b)'s address. § 87(2)(b) opened her door wide enough for officers to enter her apartment after speaking with Det. Zamot through her door. Detectives searched inside of § 87(2)(b)'s apartment for § 87(2)(b).

§ 87(2)(b) stated that on November 12, 2015, inside of § 87(2)(b) in Staten Island at approximately 5:05 a.m., she was woken up by the sound of banging at her door and her dog barking on the date of the incident. § 87(2)(b) got of bed and walked to her front door to look out of her peephole with her daughter standing next to her. § 87(2)(b) saw approximately eight to ten officers in riot gear on the other side of her door and she said, “Yes?” Det. Zamot said through the door, “We have a warrant for your arrest, open the door!” § 87(2)(b) responded, “What? For me, what did I do?” Det. Zamot responded by repeating his request for § 87(2)(b) to just open the door. § 87(2)(b) then responded, “Hell no, ya’ll be killin’ motherfuckers!” Det. Zamot then said, “Ma’am just open the door, we have a warrant for you.” § 87(2)(b) asked Det. Zamot who they were looking for, because she thought they may have been looking for her son, § 87(2)(b). After § 87(2)(b) asked Det. Zamot if they were looking for her son, Det. Zamot said, “No, § 87(2)(b) right?” Det. Zamot further explained to § 87(2)(b) “Ma’am, we just want to talk to you, we have a warrant for you and we have a warrant to check your house.” § 87(2)(b) responded by saying, “Ok”, and asked the officer what she had done. Det. Zamot responded, “Just open the door, we’ll talk to you and we’ll tell you.”

§ 87(2)(b) then opened the door for the officers to enter. None of the officers asked for permission to enter § 87(2)(b)'s apartment, and § 87(2)(b) did not give any officer permission to enter the apartment after she opened the door. The officers did not push through § 87(2)(b) and her daughter who were both standing to the side of her door near § 87(2)(b)'s wall, and § 87(2)(b) opened the door wide enough for officers to walk in. All of the officers entered the apartment at the same time with their guns drawn and had their guns pointed towards the ceiling. Sgt. Ventura stood back with § 87(2)(b) at her doorway while the other officers searched her apartment. § 87(2)(b) observed the officers look behind the couches and television in the living room, and observed them look in her daughter's room while she stood in her doorway. § 87(2)(b) observed the officers enter her daughter's closet, and start looking up and down, and § 87(2)(b) believed they were looking for a person. § 87(2)(b) did not observe the officers enter her room because her room is not visible from the apartment doorway, but did hear what she believed to be the officers opening her squeaky closet and move bins around that were under her bed.

After the officers finished searching the apartment, Det. Zamot showed a photograph of § 87(2)(b) to § 87(2)(b) and asked, "Do you know him?" § 87(2)(b) acknowledged that she knew § 87(2)(b). Det. Zamot asked § 87(2)(b) when she saw him last and explained he had warrants and they knew § 87(2)(b) was arrested in her car in April. § 87(2)(b) acknowledged that information was true and that § 87(2)(b) was living with her before April, but she had not seen him since then. § 87(2)(b) told Det. Zamot that she could text him the number she had for § 87(2)(b) after she drove her daughter to school. Det. Zamot provided § 87(2)(b) with his business card (see Board Review 26). § 87(2)(b) also showed Det. Zamot mail that had been delivered to her address intended for § 87(2)(b). § 87(2)(b) asked Det. Zamot, "If you were looking for him, why did you say that you had a warrant for me?" Det. Zamot apologized to § 87(2)(b) and explained that the officers were in fact looking for § 87(2)(b) and possibly said one of the warrants for § 87(2)(b) was for violating his parole. Det. Zamot did not show § 87(2)(b) the warrants for § 87(2)(b) only the photograph and Det. Zamot read from other paperwork that explained why they were looking for § 87(2)(b). Det. Zamot only explained that the officers were searching for § 87(2)(b) after completing their unsuccessful search for him (see Board Review 1 & 21).

Det. Zamot stated that he had a meeting regarding § 87(2)(b) at their command post with the other detectives before driving to § 87(2)(b)'s apartment in Staten Island. This meeting was regarding § 87(2)(b), who had a parole warrant with § 87(2)(b)'s address in Staten Island on it. § 87(2)(b) had two additional bench warrants from August and September of 2015 that Det. Zamot was investigating. Det. Zamot also performed a background check on the NYPD's computer database that indicated § 87(2)(b) resided at this address recently. The three warrants and the computer database search were the two pieces of information Det. Zamot used to link § 87(2)(b) to § 87(2)(b)'s address. Det. Zamot did not speak to anyone who resided in § 87(2)(b)'s building regarding whether § 87(2)(b) was living there or not. Det. Zamot knocked on the door to § 87(2)(b)'s apartment and § 87(2)(b) answered the door and asked through the door what the officers were there for. Det. Zamot was aware that § 87(2)(b) lived at this address and he believed that she and § 87(2)(b) were boyfriend and girlfriend at the time. Det. Zamot said, "I'm looking to speak to § 87(2)(b) and § 87(2)(b)" and § 87(2)(b) replied, "This is § 87(2)(b) what are you here for?" Det. Zamot explained to § 87(2)(b) that

the officers were there because they had three warrants for § 87(2)(b) and § 87(2)(b) responded by stating that § 87(2)(b) no longer lived at her apartment. Det. Zamot then explained that the parole warrant and other court warrants for § 87(2)(b) were recently submitted into the system with § 87(2)(b)'s address on them. Det. Zamot then asked § 87(2)(b) if she could open the door so Det. Zamot could show her the warrants and make sure § 87(2)(b) was not inside of her apartment holding her against her will. Det. Zamot did not tell § 87(2)(b) that the officers had a warrant for § 87(2)(b)'s arrest at any point.

§ 87(2)(b) opened the door for Det. Zamot and Det. Zamot showed the three warrants for § 87(2)(b) to § 87(2)(b) before entering the apartment. Det. Zamot asked § 87(2)(b) if the officers had permission to enter her apartment and speak with her about § 87(2)(b)'s warrants, and § 87(2)(b) responded, "Yes, that's not a problem." § 87(2)(b) opened the door wide enough for the officers to enter and stepped to the side so she did not block the entrance. § 87(2)(b) verbally gave the officers permission to search the apartment for § 87(2)(b). The other officers looked in areas of the apartment where § 87(2)(b) may have been hiding; Det. Zamot did not search the apartment for § 87(2)(b). He spoke with § 87(2)(b) by her doorway about information regarding the whereabouts of § 87(2)(b). § 87(2)(b) stated that § 87(2)(b) was "terrorizing" her, and wanted to know what steps to take in order for her address to be taken off of police documents affiliated with § 87(2)(b). Det. Zamot also told § 87(2)(b) once § 87(2)(b) was apprehended that he would speak with New York State Parole and request to have § 87(2)(b)'s address removed from § 87(2)(b)'s profile (see Board Review 3).

Sgt. Ventura stated that he reviewed this warrant for § 87(2)(b) and distributed it to the rest of the Warrant Squad on the date of this incident. There were three other bench warrants for § 87(2)(b)'s apartment in Staten Island, but Sgt. Ventura did not believe all three were for § 87(2)(b). Det. Zamot knocked on the door to this apartment and § 87(2)(b) answered approximately thirty seconds later. Det. Zamot explained that the officers had a warrant for that location and requested for § 87(2)(b) to open the door. Det. Zamot further explained to § 87(2)(b) that they were looking for § 87(2)(b). None of the officers said, "We have a warrant for your arrest, open the door," and they did not say, "Ma'am just open the door, we have a warrant for you." § 87(2)(b) opened her door after Det. Zamot said the officers were looking for § 87(2)(b) and Det. Zamot was the first officer to enter. Sgt. Ventura believed § 87(2)(b) opened the door willingly because after § 87(2)(b) opened the door, she explained to Det. Zamot that § 87(2)(b) was a real problem in her life and that she was afraid of § 87(2)(b). Sgt. Ventura did not hear § 87(2)(b) explain why she was afraid of § 87(2)(b). § 87(2)(b) also stated that § 87(2)(b)'s mail still comes to her apartment and she wanted § 87(2)(b)'s mail to stop coming to her address. Sgt. Ventura asked permission for the detectives to search the apartment for § 87(2)(b) to make sure he was not there and § 87(2)(b) said, "He's not here, you can look around." Sgt. Ventura waited in the doorway with § 87(2)(b) while the other officers searched § 87(2)(b)'s apartment for § 87(2)(b). Sgt. Ventura did not fully enter the apartment and believed the officers searched § 87(2)(b)'s apartment for approximately five to ten minutes with negative results (see Board Review 2).

Det. Dunne did not recall exactly what Det. Zamot said to § 87(2)(b) before she opened her door, but he did hear Det. Zamot inform § 87(2)(b) that the reason they were at her door was to

search for § 87(2)(b) Det. Dunne did not hear her response, but he heard § 87(2)(b) say, “Yes, come in,” after she opened the door to allow the officers entry. Det. Zamot asked § 87(2)(b) for permission to search her residence for § 87(2)(b) and Det. Dunne heard § 87(2)(b) say, “He’s not here, but you can go ahead and look.” Det. Dunne searched the apartment with other officers for § 87(2)(b) inside of bedrooms, inside of any closets, and under beds where § 87(2)(b) may have been hiding. Det. Dunne did not recall the number of rooms the officers searched and did not recall the amount of time they searched each room when they looked for § 87(2)(b) (see Board Review 4).

Neither Det. Riso nor Det. Donovan could recall if they entered § 87(2)(b)’s apartment building on the date of the incident. Neither Det. Riso nor Det. Donovan could recall if they were present while Det. Zamot spoke with § 87(2)(b) through her apartment door. Both detectives believed they may have waited outside and acted as security while Det. Zamot and the other officers went into § 87(2)(b)’s apartment building (see Board Review 5 & 6).

According to *People v. Gonzalez*, 39 N.Y.2d 122 (1976). Consent is voluntary when it is “a true act of will, an unequivocal product of an essentially free and unconstrained choice.” Voluntariness is incompatible with “official coercion, actual or implicit, overt or subtle.” “Where there is coercion there cannot be consent” (see Board Review 22).

PD v. Gliner allows officers broad discretion to display their weapons when they feel their life or another’s life is endangered (see Board Review 25).

§ 87(2)(b) stated that Det. Zamot told § 87(2)(b) multiple times through her apartment door that the officers had a warrant for § 87(2)(b)’s arrest. Det. Zamot did not mention that the officers were at § 87(2)(b)’s apartment looking for § 87(2)(b) until after § 87(2)(b) opened the door, allowing the officers to enter her apartment. § 87(2)(b) stated that she never provided verbal consent. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that Allegations A, C, E, G, & I be closed as **Unsubstantiated**.

§ 87(2)(b)

§ 87(2)(g)

Therefore, it is recommended that **Allegations B, D, F, H, & J** be closed as **Exonerated**.

Allegation K – Discourtesy: On December 9, 2015, Det. Danielle O’Rourke spoke discourteously to § 87(2)(b)

Allegation L – Abuse of Authority: On December 9, 2015, Det. Danielle O’Rourke threatened to damage § 87(2)(b) s property.

§ 87(2)(b) stated that on December 9, 2015, she got off of her couch and approached the front door after her daughter informed her that someone was knocking. § 87(2)(b) asked Det. O’Rourke through the closed door, “Can I help you?” and Det. O’Rourke responded, “Can you just open the door, I want to talk to you.” § 87(2)(b) responded, “Umm no, who are you?” Det. O’Rourke did not answer § 87(2)(b) s question and stated, “I want to talk to you, just open the fucking door.” Det. O’Rourke repeated her request for § 87(2)(b) to “open the fucking door” approximately three more times and did not say why she wanted § 87(2)(b) to open her door at any point. § 87(2)(b) believed she heard a male officer tell Det. O’Rourke, “Come on, come on, just forget it.” Det. O’Rourke then told § 87(2)(b) “We can do this the nice way or we can do this hard way.” § 87(2)(b) asked how the situation could be handled the hard way. She looked through the peephole and saw Det. O’Rourke placing flyers under her neighbors’ doors. Det. O’Rourke then told § 87(2)(b) “Well I’m going to tell everyone your business.” § 87(2)(b) did not open her door and put on boots. By the time she returned, the officers were gone. § 87(2)(b) exited her apartment and saw crime stopper flyers for § 87(2)(b) in her hallway, in the laundry room, and also on the bulletin board near the mailboxes for her building.

Det. O’Rourke stated that she was at § 87(2)(b) s apartment with the other detectives investigating an open I-Card for § 87(2)(b) (see **Board Review 19**). Det. O’Rourke believed § 87(2)(b) s address could belong to the mother of one of § 87(2)(b) children. After Det. O’Rourke knocked on § 87(2)(b) s door, § 87(2)(b) came to her closed door and asked, “What do you want?” Det. O’Rourke responded through the door, “I need to speak with you about an incident that occurred, could you please open the door?” § 87(2)(b) responded, “What is this about?” Det. O’Rourke told § 87(2)(b) that she would not tell her what the incident was about through the door, and asked § 87(2)(b) “Could you please open the door? I want to talk to you.” Det. O’Rourke did not recall if she said, “I want to talk to you, just open the fucking door,” and did not recall using any profanity during this incident. Det. O’Rourke said to § 87(2)(b) through the door, “We can do this the nice way or we can do this hard way.” § 87(2)(b) responded to Det. O’Rourke, “I’ll do it the hard way.” Det. O’Rourke said, “Ok, if you don’t open the door I’m going to put your business out there,” referring to wanted flyers for § 87(2)(b). Det. O’Rourke did not want to have the discussion with § 87(2)(b) through her door to keep this matter private, but § 87(2)(b) still refused to answer the door. Det. O’Rourke was not certain § 87(2)(b) knew § 87(2)(b) so she wanted to avoid speaking about the situation through the door. § 87(2)(b) still refused to open her door, so Det. O’Rourke distributed wanted flyers for § 87(2)(b) under the apartment doors of § 87(2)(b) s neighbors on her floor (see **Board Review 7**).

Det. Kaup and Det. Wicklow were consistent with one another regarding Det. O’Rourke identifying herself and stating that she was conducting an investigation, and she did not use

It is undisputed that § 87(2)(b) refused to open the door upon repeated requests. § 87(2)(b) stated that after she refused to open the door after Det. O'Rourke's first request, Det. O'Rourke stated approximately four times to, "open the fucking door." § 87(2)(g)

In OATH case PD v. Matias, it states that profanity is permissible where the officer has resorted to such language in order to forcefully make a point or to gain compliance in a dangerous situation (**see Board Review 27**). Per *People v. Gonzalez*, above, consent to enter a home cannot be coerced.

CCRB – Confidential

Squad:

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date